Questionnaire: Calvary – 14 Healthscope hospitals and Healthscope Independence Services

MN-10040

Deadline to respond: 6 November 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Little Company of Mary Health Care Ltd's (**Calvary**) proposed acquisition of 14 private hospitals, together with Healthscope Independence Services and all head office and centralised corporate support functions from Healthscope (the **Acquisition**).

As part of the Acquisition, Calvary will acquire the following private hospitals:

- In New South Wales: Norwest Private, Lady Davidson Private, The Hills Private, and Sydney Clinic (all in Sydney), and Newcastle Private and Hunter Valley Private.
- In Victoria: John Fawkner Private, Melbourne Private, Melbourne Clinic, and Dorset Rehabilitation (all in Melbourne).
- In Queensland: Brisbane Private and Peninsula Private (both in Brisbane).
- In the Northern Territory: Darwin Private.
- In South Australia: Griffith Rehabilitation.

(collectively, the **Target Hospitals**)

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **6 November 2026** via email to mergers@accc.gov.au with the title *Submission re: Calvary – Healthscope assets.* The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with the title *Request for call re: Calvary – Healthscope assets*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.

- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions

1. Outline any concerns regarding the impact of the Acquisition on competition, including if any Calvary-operated hospitals and any of the Target Hospitals are close competitors in the relevant geographic region in which they operate.

   In your response, you may wish to consider factors such as the services and specialities available at each hospital, medical officers, facilities, location, quality of care, safety, innovation and pricing.

2. Please list any other hospitals, including day surgeries, that compete with the Calvary-operated hospitals and the Target Hospitals in the relevant geographic regions identified in response to question 1. Please explain your response and identify any services or specialities these hospitals and day surgeries compete closely on.

3. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition, including in relation to the acquisition of Healthscope Independence Services.

4. Provide a brief description of your business or organisation, including any commercial relationships with Calvary and/or Healthscope.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and

in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**